

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
SEMRICK HALL,

Index No.: 523588/2019

Plaintiff,

VERIFIED COMPLAINT

- against -

DETECTIVE MATTHEW KHALIL, DETECTIVE FELICIA SIMON, DETECTIVE JOVANIEL CARDOVA, SERGEANT KEVIN FITZGERALD, SERGEANT MICHAEL ENRIGHT, SERGEANT BRANDON BERSCH, POLICE OFFICER PHILIP LONGO, POLICE OFFICER MATTHEW KANCLER, POLICE OFFICER HAJDER SEBASTIAN, POLICE OFFICERS JOHN DOE 1-3 (JOHN DOE BEING FICTITIOUS AS THEIR TRUE NAMES ARE CURRENTLY UNKOWN),

Defendants.

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Plaintiff, SEMRICK HALL, by his attorneys. LORD & SCHEWEL PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff SEMRICK HALL brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. That at all times hereinafter mentioned, the defendants MATTHEW KHALIL, FELICIA SIMON, JOVANIEL CARDOVA, KEVIN FITZGERALD, MICHAEL ENRIGHT, BRANDON BERSCH, PHILIP LONGO, MATTHEW KANCLER, HAJDER SEBASTIAN and JOHN DOES 1-3 were employees of the New York City Police Department, acting in their

capacity as a police officers, and under color of law. All defendants are sued in their individual capacity.

3. That all acts and incidents complained of herein occurred in Kings County, City, and State of New York.

4. That all conditions and requirements precedent to the commencement of this action have been complied with.

5. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

6. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

7. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

8. That by reason of the foregoing, this plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

The initial complaint and police appearance

9. On or about 1:00 am on August 17, at or near 1410 Brooklyn Ave, Apt. 2G the Police received a 911 call from an individual named Max Videau. Max Videau calls for medical attention initially, and then claims he has a concussion and he was assaulted by individuals. He

says these individuals are “still present,” when making the call and he was assaulted by three people. He also says these people had “guns.” There is no mention of any money taken during this assault.

10. When the police arrive, Mr. Videau is able to identify only one individual who assaulted him. It is unclear if he even mentioned that there were additional people. This person is a 6’2 black male who is wearing a Tim Tebow jersey. Semrick Hall is 5’9.

11. Not mentioned in any police report, witnesses at the scene spoke with the police about what happened and informed the police that no robbery had taken place. Moreover, upon information received by this office Mr. Videau is addicted to controlled substances and was under the influence of controlled substances when the police arrived. This would have been readily apparent to any officers who came to the scene. Moreover, this information was not recorded nor written down by the responding officers.

Detectives perform a tainted identification procedure

12. Approximately eight hours after Mr. Videau suffered from a concussion and other head injuries, he was brought to the 67th precinct to conduct an identification procedure.

13. Defendant Felicia Simon failed to inform the District Attorney’s office that Mr. Videau suffered from head injuries that could affect his ability to accurately recall faces, names, and what took place.

14. Defendant Simon informed Mr. Videau that one person he identified was a member of a gang. This person was not Semrick Hall. She then presented him six individuals that she informed him were associates of the individual she previously identified as a gang member. Det Simon also informed Mr. Videau that these individuals were known perpetrators.

15. This tainted the identification procedure by making it seem as if the person or persons that committed the crime was in the photo that was presented to Videau.

16. Consequently, Mr. Videau performed an incorrect identification of Semrick Hall. Semrick Hall was not even present at 1410 Brooklyn at the time of the incident.

Investigating detectives find additional information that casts doubts on the veracity of the Complainant

17. After August 17, 2017, the 67th Precinct proceeds to investigate what was previously an assault and now, apparently, became a Robbery.

18. Detective Simon ran a background check on the complaint on August 17, 2017. This check revealed that Mr. Videau had previously been arrested for violation of court orders, crimes of dishonesty and crimes of physical violence. This information was not forwarded to the District Attorney's office.

19. On August 24, 2019, an arrest was made of the two other individuals who were purportedly identified by Mr. Videau. The Kings County District Attorney's Office Declined to Prosecute both individuals because of the inability to confirm their identifications from the Complaint. The phone number given by the complainant was either false or disconnected.

20. On that same date, Officer Kancler attempted to contact Mr. Videau, but the address given by Mr. Videau was false and Mr. Videau had not in fact lived in that address for about three to four years. In addition, Defendant Kancler was informed that Mr. Videau was homeless. Officer Kancler also talked to his contact for Mr. Videau, who confirmed that Mr. Videau was homeless and said that he knew Mr. Videau by a different name.

The Unlawful Entry and False Arrest of Semrick Hall

21. On August 31, 2017, Semrick Hall was arrested inside his home at 508 Cleveland Street. Detective Jovaniel Cardova and Sergeant Bersch entered his home without an arrest warrant.

22. This arrest took place even though the previous two arrests based on the complainant had both been DP'd due to lack of confirmation from Mr. Videau. Consequently, Detective Khalil informed the Kings County District Attorney's Office that he received

confirmation text from Mr. Videau identifying Mr. Hall as the perpetrator. This statement comes after Officer Kancler was told that Mr. Videau was homeless, that there were no working phone numbers, and had been unsuccessful in attempting to contact him. Moreover, Detective Khalil makes no mention in police reports or DD5s report and never gave a screenshot of this alleged text to the Kings County District Attorney's Office.

23. Therefore, Detective Khalil falsely stated to the KCDA that he received confirmation of the identity of Mr. Hall from Mr. Videau through text message in order to ensure that the case was not DP'd by the KCDA.

24. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

25. These charges against plaintiff were based in part on the false allegations and fabrications by all Defendants named in the caption.

26. Plaintiff was arraigned on August 31, 2017 and was imprisoned on \$30,000 bond over \$20,000 cash. Plaintiff spent six days in prison before he was released on September 5, 2017.

27. Plaintiff was charged with Penal Law § § § § § § § § § § § § § § 160.15(3), 160.15(4), 160.10(2)(A), 160.05, 120.00(1), 120.14(1), 145.00(1), 155.25, 165.40, 265.01(2), 11/120.00(1), 120.15, and 240.26.

28. All criminal charges against plaintiff relating to this arrest were dismissed on the motion of the KCDA on December 13, 2017.

29. Plaintiff was acting lawfully when he was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief, agents employed by the New York City Police Department.

30. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

31. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.

32. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

33. As a result of the defendants' conduct, plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C 1983**

34. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

35. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK POLICE DEPARTMENT and CITY OF NEW YORK.

36. As a result of the aforesaid conduct by DEFENDANTS, Plaintiff was subjected to illegal, improper and false arrest by the DEFENDANTS and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

37. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional

distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

38. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER U.S.C. § 1983**

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

40. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANTS and other unidentified officers of the NYPD present on the scene without probable cause.

41. DEFENDANTS commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

42. DEFENDANTS commenced this criminal action out of malice.

43. The criminal action against Plaintiff has terminated in his favor.

44. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

45. That Plaintiff was conscious of the confinement.

46. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

47. The acts and conduct of the DEFENDANTS were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

48. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

49. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**THIRD CAUSE OF ACTION:
UNLAWFUL ENTRY**

50. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

51. DEFENDANTS CARDOVA and BERSCH entered the home of Plaintiff without a search warrant or an exigency.

52. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

53. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**FOURTH CAUSE OF ACTION:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE PROCESS OF
LAW UNDER 42 U.S.C 1983 AND THE FOURTEENTH AMENDMENT TO THE U.S.
CONSTITUTION**

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

55. DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

56. The Individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

57. In addition, DEFENDANTS made false statements to the KCDA, resulting in the KCDA commencing a prosecution without probable cause. These statements include, but are not limited, a statement from Detective Khalil that he had received confirmation of Semrick Hall from Max Videau.

58. Based upon this information, the KCDA unknowingly commenced a prosecution without probable cause.

59. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

60. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**FIFTH CAUSE OF ACTION:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

61. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

62. Those DEFENDANTS that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

63. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**SIXTH CAUSE OF ACTION:
NEGLIGENT HIRING AND RETENTION**

64. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

65. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

66. The misconduct by DEFENDANTS described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

67. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**SEVENTH CAUSE OF ACTION:
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

68. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

69. By virtue of the aforementioned acts, the Individual DEFENDANTS are liable to Plaintiff for violating his right to due process under Article I, § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

70. DEFENDANT THE CITY OF NEW YORK and the New York City Police Department are liable for these violations of the New York State Constitution.

DAMAGES

71. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

72. This action seeks damages from on or prior to August 17, 2017 through the present.

73. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

74. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering,

mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of family, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.

75. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court Oct deem appropriate and equitable.

Dated: New York, New York
November 15, 2019

Yours, etc.

Lord & Schewel PLLC



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ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for plaintiff SEMRICK HALL. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
Nov 15, 2019



MASAI I. LORD
Counsel for Plaintiff